

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 10, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel (via Zoom), Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Dr. Rinne, and pursuant to support received by Mr. Johnson and Mr. White, agenda item #32 was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on April 26, 2021. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located north of Pershing Boulevard and west of Christensen Road. Seth Lloyd, Planning and Development Department, explained they received a petition to annex the land, provided information on the property and reviewed requirements of compliance with annexation conditions contained in state statutes. Mr. Lloyd explained agenda items #21 & #22 are affiliated with the annexation and single-family homes and duplexes are proposed for the area. Upon inquiry, Mr. Lloyd explained the intersection of Pershing & Christensen is currently outside of city limits. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located east of and adjacent to South Greeley Highway [US 85], north of Chalk Bluff Road. Seth Lloyd, Planning and Development Department, explained they received a petition to annex the land, provided information on the property and reviewed requirements of compliance with annexation conditions contained in state statutes. Mr. Lloyd explained agenda items #23 & #24 are affiliated with the annexation and advised the land is proposed to be used for industrial purposes. Upon inquiry, Mr. Lloyd explained there are approximately 432 acres that will be annexed between the prior public hearing annexation and this one. Concern was expressed with expanding emergency services to annexed areas. Mr. Lloyd advised Police Department and Fire Department are asked to review annexations and plats and he doesn't believe there were any comments made, noting however, the

absence of comments doesn't mean there won't be any concerns with expanding services. Comment was stressed that the city needs to make sure services can be covered when new areas are annexed. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive. Seth Lloyd, Planning and Development Department, explained they received a petition to annex the land, provided information on the property and reviewed requirements of compliance with annexation conditions contained in state statutes. Mr. Lloyd explained agenda items #25 & #26 are affiliated with the annexation and duplex development is proposed for the area. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing.

Mayor Collins opened a public hearing for a bar and grill liquor license application filed with the City Clerk's Office for HRARG DH Cheyenne, WY, LLC, d/b/a Dog Haus, 3838 Atkin St., Cheyenne Wyoming. Kris Jones, City Clerk, upon inquiry, confirmed the current owners hold a bar and grill liquor license and advised bar and grill liquor licenses are not transferable and this request is due to change in ownership. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing for a restaurant liquor license application filed with the City Clerk's Office for Tres Amigos Incorporated d/b/a Tres Amigos Family Mexican Restaurant, 2414 W. Lincolnway, Cheyenne, Wyoming. There being no comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing and referred the application to Finance Committee.

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located northwest of and adjacent to the intersection of Dell Range Boulevard and Whitney Road. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body. (#4358)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-2 Agricultural to AG Agricultural for land located northwest of and adjacent to the intersection of Dell Range Boulevard and Whitney Road. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4359)

ORDINANCE –3rd READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4360)

ORDINANCE –3rd READING – Rescinding Footnote 1 in Ordinance No. 4314 appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said city and fixing the amount of General and Special Taxes as part of the revenue required to meet the said appropriation, all for the fiscal year beginning July 1, 2020, and ending June 30, 2021. Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4361)

ORDINANCE –2nd READING – Amending the City of Cheyenne’s Solid Waste Fee Schedule. Vicki Nemecek, Director of Public Works, explained this is the annual amendment of the fee schedule and provided information on the areas of increase. Ms. Nemecek reported that residential trash and recycling services are subsidizing other services. She provided details on proposed changes which include: removal of 1.5 yard waste containers, removal of acceptance of single items at transfer station, increased fee for 1.5 cubic yard container cleaning, increased fee for disposition of tires based on weight, and removal of “There is no guarantee the optional yard waste collection program will be available upon return” sentence in Note 11. Ms. Nemecek advised that upon request from members of the governing body, she will work on a media campaign for informational purposes for the solid waste program. Ms. Nemecek provided clarification on removal of 1.5 cubic yard waste containers and the increase in cleaning fee of the 1.5 cubic yard container. Upon further inquiry, Ms. Nemecek advised over the years they have been looking at whether containers are picked up on the street or in an alley and explained that pick up location is consistent per block and/or neighborhood. Ms. Nemecek explained, upon inquiry, that there was a previous increase for the yard waste program of \$1.20 so they could invest in more equipment, drivers and bins so the program could be expanded, and bins are available. She further explained since the program fee increase, money is not being lost on the program, but services aren’t being used efficiently as there aren’t enough subscribers. Additional drivers and equipment are being utilized in other areas of the solid waste program for additional pick-ups, etc. During discussion related to Colorado taking plastic numbers 1-6, it was noted the expectation is plastics recycling overall will decrease, not increase. Appreciation was expressed to Ms. Nemecek for working on the PSA regarding recycling. Ms. Nemecek provided information on the “Recycle Coach” app which can assist customers. Upon further inquiry related to why plastic recycling isn’t expanding, Ms. Nemecek advised contractors typically are not willing to take a loss due to accepting materials they will lose money on such as plastics. Ms. Nemecek noted tin cans, cardboard and glass provide a positive return, however, to accept glass, they would have to increase program fees. Mr. Roybal moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Unified Development Code (UDC) to increase the total lot coverage of the MD1, MD2, P-CV1, P-CV2, and P-CV3 lot types to 80%. Dr. Rinne advised there was no recommendation on the item at the Public Services Committee. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Dr. Rinne reported concerns were raised during the Public Services Committee that although the proposal is to allow greater building coverage in those lot types, it would leave a negative effect relating to decreased landscaping requirements. Comment was made that caution was raised by the Board of Public Utilities relating to water usage concerns involving landscaping water requirements. Additional

concerns were raised in areas relating to landscaping, primarily trees, which have died due to lack of maintenance in areas such as around the airport terminal. Comments were made that developers follow landscaping requirements when properties are developed, but those green areas are not maintained after completion. Concerns were raised related to management and enforcement of landscaping requirements and request was made to take this opportunity to look at the current landscaping code for possible revisions. Mayor Collins advised staff is currently working with property owners on possible improvements. It was further advised each development will be required to resize runoff facilities to accommodate terrain changes involving landscaping. Motion carried. Voting “yes” – all members of the governing body with exception of Dr. Aldrich, Mr. Laybourn and Dr. Rinne voting “no”.

ORDINANCE –2nd READING – Creating Chapter 8.29, Hood System Cleaning Companies, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming. Division Chief Byron Mathews, Cheyenne Fire and Rescue Department, reported the creation of the ordinance is for hood cleaning contractors to ensure that those contractors who clean hood systems are properly licensed, insured and trained. Mr. Mathews advised this ordinance mirrors the fire extinguisher business licensing requirement. Mr. Mathews, upon inquiry, provided information on a recent incident where an individual who did not have proper training provided services to a local restaurant and the restaurant equipment was left at high risk for catching fire and food contamination. Mr. Matthews explained that with approval of the ordinance, the fire department will know who is providing services and can make sure they are qualified. He reported last year there were approximately 10 instances where hood systems were not properly maintained or cleaned. It was noted that the ordinance was drafted at the request and in consultation with local HVAC and knowledgeable hood cleaning contractors. Mr. Roybal moved to approve on second reading, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –1st READING – Amending Section 5.12.030, Licenses and Permits-Types, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Repealing Chapter 2.52, Personnel Commission, and creating a new Chapter 2.52, Personnel System, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsors – Mr. Johnson, Dr. Rinne and Mr. Segrave)

ORDINANCE –1st READING – Repealing Chapter 2.92, Personnel System, and creating a new Chapter 2.92, Administrative Hearing Procedure, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsors – Mr. Johnson, Dr. Rinne and Mr. Segrave)

ORDINANCE –1st READING – Granting a non-exclusive franchise to Visionary Communications, Inc., within the rights-of-way of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. White)

ORDINANCE –1st READING – Amending the Unified Development Code (UDC) to align the UDC fee schedule with the fee adoption practices of the City – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located north of Pershing Boulevard, west of Christensen Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-1 Agricultural and Rural Residential to MR Medium-Density Residential for land located north of Pershing Boulevard, west of Christensen Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located east of and including South Greeley Highway (US 85), north of Chalk Bluff Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-2 Agricultural to AG Agricultural, LI Light Industrial, and HI Heavy Industrial for land located east of South Greeley Highway (US 85), north of Chalk Bluff Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County AR Agricultural Residential to MR Medium-Density Residential for land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities – referred to Finance Committee. (Sponsor – Mr. Laybourn)

ORDINANCE –1st READING – Appropriating moneys for the City of Cheyenne, Wyoming for various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2021 and ending June 30, 2022 – referred to Committee of the Whole. Sponsor – Mr. White)

[CA] RESOLUTION – Adopting the City of Cheyenne Annual Action Plan 2021, prepared by the Cheyenne Housing and Community Development Office. Motion (per Consent Agenda) carried. (#6141)

[CA] RESOLUTION – Supporting the Cheyenne Regional Airport Board in the submission of an application for federal assistance to the Federal Aviation Administration under the Coronavirus Response and Relief Supplemental Appropriations Act of 2021 to assist in funding costs related to operations, cleaning, sanitization, janitorial services, combating the spread of pathogens at the airport, and debt service payments. Motion (per Consent Agenda) carried. (#6142)

[CA] RESOLUTION – Supporting the Cheyenne Regional Airport Board in the submission of an application for federal assistance to the Federal Aviation Administration for ‘Design and Bidding Services for the Reconstruction Runway 9/27 (Phase III) Project’. Motion (per Consent Agenda) carried. (#6143)

RESOLUTION – Directing City staff to plan and execute the completion of the 17th Street Lighting Project (Specific Purpose Sales Tax). Amber Ash, DDA Executive Director, spoke in support of the resolution and reported there are currently 3 blocks starting on Central Ave. and the Dinneen block that are finished with 1 additional block that needs to be completed. Ms. Ash provided additional information on the project and commented on the importance of completing the project noting it is an attraction in downtown. Mr. Roybal moved to adopt, seconded by Dr. Aldrich. Comments were made in support of completing the project. Upon inquiry regarding project funding, Mr. Segrave reported there were leftover funds from the 2012 6th Penny sales tax and overages that will be used for the project in the amount of \$35,000.00. Information was provided regarding future maintenance funding and bulb replacement. Discussion included concerns involving maintenance of the decorative band of concrete in the blocks between Warren Avenue and Carey Avenue and sidewalk issues in the area. Motion carried. Voting “yes” – all members of the governing body. (#6144)

[CA] RESOLUTION – Recognizing the historical interest and value of the Cheyenne Auxiliary Pumping Station located at 1504 Dillon Avenue, Cheyenne, Wyoming, and directing the City of Cheyenne to proceed with the steps necessary to protect and enhance this historic structure. Motion (per Consent Agenda) carried. (#6145)

[CA] RESOLUTION – Rescinding Resolution No. 6023 which establishes that all revenue from City Contract No. 5902 be split evenly between the City of Cheyenne Solid Waste Enterprise Fund, the Board of Public Utilities, and the newly established Belvoir Ranch Recreation Special Revenue Fund – referred to Finance Committee. (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Authorizing the Downtown Development Authority (DDA) to generate revenue for general operating funds – referred to Finance Committee. (Sponsors – Mr. Johnson, Mr. Roybal and Mr. White)

[CA] Cable Franchise Agreement between the City of Cheyenne, Wyoming, and Clarity Telecom, LLC. Motion (per Consent Agenda) carried. (#7336)

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for the use of city-owned land and buildings for parking, camping, and other activities during the 2021 Cheyenne Frontier Days Celebration – referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne and the Cheyenne Artist Guild, Inc., for the Van Tassell Carriage House located at 1701 Morrie Avenue, Cheyenne, Wyoming – referred to Finance Committee.

[CA] Consideration of Bid #S-15-21 for a Contract between the City of Cheyenne and Craig Construction Services LLC, Laramie, WY, for the Michael Drive Sidewalk Project (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$43,311.25). (#7337)

[CA] Consideration of Bid #S-16-21 for a Contract between the City of Cheyenne and Craig Construction Services LLC, Laramie, WY, for the Cheyenne Aquatics Center Main Pool Diving Boards Removal and Replacement (Specific Purpose Sales Tax, Laramie County Recreation Board Grant and Miscellaneous Non Federal Grants). Motion (per Consent Agenda) carried (in an amount not to exceed \$62,230.00). (#7338)

[CA] Consideration of Bid #S-17-21 for a Contract between the City of Cheyenne and Streamline Markings, Inc., Billings, MT, for the 2021 Epoxy Striping Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$172,073.00). (#7339)

[CA] Consideration of Bid #E-21-21 for furnishing one (1) new 2020-2021 front end wheel loader mounted, two stage blower for the City of Cheyenne, Street and Alley Division (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Power Equipment Company, Casper, WY, in an amount not to exceed \$121,694.00).

[CA] Consideration of Bid #E-22-21 for furnishing one (1) $\frac{3}{4}$ ton crew cab truck for the Traffic Division, one (1) $\frac{3}{4}$ ton regular cab truck for the City of Cheyenne Facilities Maintenance Division and three (3) $\frac{3}{4}$ ton crew cab trucks for the City of Cheyenne, Street and Alley Division (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Rocky Mountain Yeti, Casper, WY, in an amount not to exceed \$222,437.00).

[CA] Consideration of Bid #E-23-21 for furnishing two (2) new 2020 to 2021 mid-size SUVs for the City of Cheyenne, Public Works Department and Sanitation Department (2015-2018 and

2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Spradley Barr Motors, Cheyenne, in an amount not to exceed \$60,936.00).

[CA] Consideration of Bid #E-24-21 for furnishing one (1) 2021-2022 mid-size pick-up truck for the City of Cheyenne, Sanitation Department and one (1) 2021-2022 mid-size pickup truck for the City of Cheyenne, Community Recreation and Events Department (2015-2018 % Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Spradley Barr Motors, Cheyenne, in an amount not to exceed \$75,096.00).

[CA] Consideration of Bid #E-27-21 for furnishing four (4) new Kubota RTV-X1100C utility vehicles for the City of Cheyenne, Community Recreation & Events Department (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Heartland Kubota, LLC, Sheridan, WY, in an amount not to exceed \$134,651.22).

[CA] Consideration to purchase between the City of Cheyenne, and Wyoming Machinery Company, Cheyenne, Wyoming, to replace the undercarriage, track shoes, and related components on a Caterpillar D5K Dozer (City Block #5901) (Fleet Maintenance Fund – referred to Finance Committee).

Appointment of Jesse Naiman to the Building Code Board of Appeals. Mr. Segrave moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment).

No comments were made on the Voucher Report as presented.

Announcement was made of Public Hearing to be held May 24, 2021 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, for a retail liquor license transfer of location application filed with the City Clerk’s Office for Poor Richard’s, from 2233 E. Lincolnway to 1808 O’Neil Ave., Cheyenne, Wyoming.

Announcement was made of Public Hearing to be held May 24, 2021 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, for a retail liquor license transfer of ownership application filed with the City Clerk’s Office for ARCHCO Albany, LLC d/b/a Albany Restaurant, Bar, and Package Liquor, 1506 Capitol Ave., Cheyenne, Wyoming (license currently held by Albany, Inc. d/b/a Albany Restaurant, Bar and Liquormart).

Announcement was made of Public Hearing to be held May 24, 2021 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, for a bar and grill liquor license application filed with the City Clerk’s Office for Capitol Cuisine LLC d/b/a Ike’s Bar & Grill, 122 West 6th St., Cheyenne, Wyoming.

Mayor Collins noted 2 additional agenda items to be introduced and referred to Finance Committee and requested the City Clerk read them into the record:

Payment Agreement between the City of Cheyenne and Blue Cross Blue Shield to provide a rebate payment to the City of Cheyenne in the amount \$275,000.00 for group health insurance benefits for City employees – referred to Finance Committee

Renewal of Contract #6836 between the City of Cheyenne and Blue Cross Blue Shield for group health insurance benefits for City employees – referred to Finance Committee.

Under other business:

Mr. Johnson advised 102 trees will be planted on Saturday, May 15th for the Rooted in Cheyenne tree canopy. The organization is looking to reoffer volunteering opportunities in September.

Mayor Collins noted a City clean-up will also be happening on Saturday, May 15th in conjunction with the Cheyenne Day of Giving annual event.

Mr. Segrave expressed appreciation to Jason Sanchez and Teresa Moore related to the return of Friday's on the Plaza.

Dr. Aldrich provided information on the upcoming Ward III City Council and Coffee Open House event on Saturday, May 15th at the east Dazbog Coffee.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:05 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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